

Bashu Gupta v. State of U.P.

Allahabad High Court · Division Bench · 26 October 2018 · Writ - C No. 33487 of 2018 · **Petition disposed of; petitioner relegated to clause 6.5 objections.**

HEADNOTE

A consumer disputing recovery of an electricity bill, even after the Executive Engineer has already decided the matter without a hearing or a clause 6.5 objection, is relegated to file objections before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The writ court will not quash the recovery challans on merits; coercive action is stayed until a timely objection is decided.

FACTUAL SUMMARY

Bashu Gupta sought quashing of recovery challans dated 10 January and 21 May 2018. He had paid Rs.30,000 against connection no. 5014761106, but later received bills of Rs.1,64,747 and about Rs.2,00,000 against connection no. 1536661787, which he denied holding. After an interim stay, the licensee stated that an account was opened without a meter and the number changed to 1536661787 when the meter was installed. The Executive Engineer had already decided the matter by letter dated 24 October 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection before Executive Engineer

HOLDING

Where a consumer challenges recovery of a bill and the Executive Engineer has already decided the matter without giving an opportunity of hearing or receiving an objection under clause 6.5 of the Electricity Supply Code, 2005, the writ court will not quash the recovery challans on merits. The consumer has liberty to file a clause 6.5 objection before the Executive Engineer, who shall decide it within the time fixed; coercive action on the impugned challans is stayed until that decision. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CONNECTION NO. 1536661787 IS THE PETITIONER'S CONNECTION AND WHETHER THE DISPUTED BILL AND RECOVERY CHALLANS ARE PAYABLE

The Court recorded the licensee's account-number-change explanation as instruction and did not adjudicate the bill on merits. ¶ 3

NOT DECIDED — VALIDITY OF THE EXECUTIVE ENGINEER'S LETTER DATED 24 OCTOBER 2018

The Court observed that the decision appeared to have been taken without hearing or a clause 6.5 objection, but did not quash it; the petitioner was left to file a fresh 6.5 objection. ¶ 3